

HOUSE No. 2685

The Commonwealth of Massachusetts

PRESENTED BY:

David M. Rogers and Marjorie C. Decker

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to improve transparency and accountability in correctional facilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>1/16/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>1/16/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/22/2025</i>

HOUSE No. 2685

By Representatives Rogers of Cambridge and Decker of Cambridge, a petition (accompanied by bill, House, No. 2685) of David M. Rogers, Marjorie C. Decker and Patrick Joseph Kearney relative to the right of persons incarcerated in correctional institutions, state prisons, jails or houses of correction to confer with news media representative. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2394 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve transparency and accountability in correctional facilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 127 of the General Laws is hereby amended by inserting after
2 section 36C the following section:- Section 36D. (a) For the purpose of this section, “news media
3 representatives” are persons who are engaged in reporting news for (1) a radio or television
4 program, (2) an online or print newspaper, (3) an online or print magazine, (4) a national or
5 international news service, including wire services, (5) a website or (6) a podcast. Freelance
6 reporters and journalists shall also be considered news media representatives for the purpose of
7 this section.

8 (b) No correctional institution, state prison, jail or house of correction, the commissioner
9 of correction, hereinafter the commissioner, sheriff, superintendent, correctional officer,

employee, contractor or any other staff member shall abridge the right of a person incarcerated in any correctional institution, state prison, jail or house of correction in the commonwealth to confer with any news media representative. Such news media representatives may visit an incarcerated person at such times as may be established under rules promulgated by the commissioner. News media representatives shall have rights to unimpeded, confidential, in person visitation and video conferencing commensurate with the rights of attorneys established in section 36A of this chapter; provided, that there shall be no restrictions on the access of news media representatives due to housing placement or disciplinary sanctions imposed on an incarcerated person for any offense.

(c) All correctional institutions, state prisons, jails and houses of correction shall provide for unimpeded, unmonitored, and confidential telephone communication between news media representatives and incarcerated persons. News media representatives shall be permitted to establish a telephone line which shall be authorized for confidential communication with any incarcerated person. All correctional institutions, state prisons, jails and houses of correction shall provide an online system whereby news media representatives may register their information, including, but not limited to, their email addresses and telephone numbers. The correctional institutions, state prisons, jails and houses of correction shall publish information regarding media access on their websites and provide said information to all incarcerated persons upon entry into such facilities. Ordinary pre-authorization processes, telephone limitations, restrictions and cap limits shall not apply to conversations between incarcerated persons and news media representatives. Incarcerated persons serving disciplinary sanctions shall at all times be permitted telephone access to news media representatives.

(d) Attorneys shall be permitted to bring with them a news media representative on any legal visit with an incarcerated person, including in-person visits, video visits and video conferencing.

(e) Retaliation against any incarcerated person for communication with a news media representative shall be prohibited and punishable by disciplinary action up to and including termination.

(f) The commissioner shall update regulations in accordance with this section.

(g) Sheriffs shall update policies in accordance with this section.

SECTION 2. Section 87 of Chapter 127 of the General Laws is hereby amended by inserting in subsection (a) after the words “the commissioner or any deputy commissioner of correction,” the following words:- any news media representative as defined in section 36D of chapter 127

SECTION 3. Chapter 127 of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by adding the following section:- Section 170. (a) The following data regarding use of force at all correctional institutions, state prisons, jails and houses of correction shall be collected and provided to any person upon request as well as published, quarterly, on the agency’s website and provided quarterly to the Joint Committee on the Judiciary, the Joint Committee on Public Safety and Homeland Security, the Attorney General and the Governor, to review and recommend clear limitations on the use of physical force by state and county correction officers and juvenile detention officers: (1) the number of incidents facility-wide, (2) the number of incidents in any form of segregated confinement, (3) the number of incidents during mental health watches, (4) the number of incidents involving incarcerated people who are

being treated for psychiatric disabilities, (5) the number of incidents by race of involved incarcerated people and by race of involved staff, (6) the number of incidents resulting in injury to an incarcerated person, (7) the number of incidents resulting in injury to staff, (8) the number of incidents where any incarcerated person had to be treated at an outside hospital, as well an accounting of the injuries that required treatment, (9) the number of incidents where a correctional officer or any other staff person had to be treated at an outside hospital, as well as an accounting of the injuries that required treatment (10) the number of incidents involving use of chemical agents, (11) the number of incidents involving use of a restraint chair, (12) the number of incidents involving use of any kinetic impact weapon, (13) the number of incidents involving K-9s, and (14) the number of incidents involving any other use of force tool. Each data point shall include a breakdown by planned use of force, spontaneous cell entry and other use of force.

(b) The following data regarding use of force complaints, investigations, and outcomes at all correctional facilities shall be collected and provided to any person upon request as well as published, quarterly, on the agency's website and provided quarterly to the Joint Committee on the Judiciary, the Joint Committee on Public Safety and Homeland Security, the Attorney General and the Governor: (1) the number of grievances and other complaints alleging that excessive force was used against an incarcerated person, (2) the number of investigations conducted by internal affairs related to use of force and an accounting of the outcomes of those investigations, including all findings and all resulting discipline, (3) a list of all officers, including their current employment status and position, who have been found to have engaged in excessive use of force, and (4) a list of all officers, including their current employment status and position, who have been found to have lied or been otherwise not fully truthful and cooperative in the course of an investigation related to use of force.

77 (c) An incarcerated person and their legally designated representative shall have the right
78 to obtain a copy of all records relating to any use of force incident involving the incarcerated
79 person, including, but not limited to, written reports, investigations, investigation findings,
80 interviews, video and audio recordings and photographs. All such records must be provided
81 within 10 business days of any request. All such records shall also be public records, except that
82 records access officers must redact the name and identifying information of any involved
83 incarcerated person before providing the records to any requestor who is not the involved
84 incarcerated person or who does not have a release from them.